

24STCV12125 24STCV12125

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Case Number: 24STCV12125 Hearing Date: September 15, 2026 Dept: 414

24STCV12125

Troncoso v. FCA U.S. LLC

Tuesday,

September 15, 2026

[TENTATIVE] ORDER PLAINTIFF'S MOTION TO COMPEL RESPONSES TO
REQUEST FOR SPECIAL INTERROGATORIES, SET ONE AND REQUEST FOR SANCTIONS. (3704)

I. BACKGROUND

The

complaint alleges Defendant breached an express warranty regarding a 2020 Jeep Grand Cherokee purchased by Plaintiffs. Plaintiffs move for an order compelling Defendant to serve responses to special interrogatories, set one, served on Defendant on July 2, 2024.

As

of September 9, 2026, Plaintiffs did not file a reply brief.

II. DISCUSSION

Where

a party fails to respond to interrogatories, the court has authority to compel a response. (Code Civ. Proc., §2030.290 subd. (b).) Untimely responses result in a waiver of objections. (Code Civ. Proc., § 2030.290 subd. (a).) As Defendant did not serve responses, all objections are waived.

Defendant

argues that the parties had an informal arrangement for all cases between them wherein Plaintiffs' counsel Defendant an open-ended extension to respond to Plaintiffs' discovery. Defendant contends the arrangement provided it was not required to respond unless specifically requested by Plaintiff's counsel. This motion undermines the parties' agreement. However, Defendant states it served verified responses on June 3, 2026, one day after Plaintiffs filed this motion.

Defendant

did not submit copies of its belated responses purportedly served on Plaintiffs. Nor has Defendant submitted a copy of the parties' written agreement granting Defendant an open-ended extension to respond to all discovery. Plaintiffs' counsel states that Plaintiffs previously granted a limited extension of time to respond, but because the responses were substantially overdue, Plaintiffs revoked any prior extension by letter dated May 20, 2026. (Rucker decl., Ex. 4.)

Accordingly,

Plaintiffs are entitled to fees and costs as sanctions for Defendant's failure to show substantial justification for failing to timely respond.

III. CONCLUSION

Based

on the foregoing, Plaintiffs' motion is GRANTED. Defendant is ordered to serve verified responses to the first set of special interrogatories without objection within 10 days. Defendant has not shown substantial justification for its failure to timely serve discovery responses. The Court imposes monetary sanctions of \$1,155 (\$385 x 3 hours) against Defendant, FCA US, LLC, payable to Plaintiffs within 10 days.